

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF CONNECTICUT**

CHRISTIAN RIVAS-PLATA,

Plaintiff,

v.

EDVALDO BAPTISTA AND
SAHARA EXPRESS, INC.,

Defendants.

CASE NO.: 3:22-cv-01447-RNC

AMENDED COMPLAINT

JUNE 16, 2023

AMENDED COMPLAINT

The Plaintiff, Christian Rivas-Plata, in the above titled-action, pursuant to FRCP Rule 15, hereby submits this amended Complaint against Defendant, Sahara Express, Inc, as follows:

FIRST COUNT: (As to the plaintiff, Christian Rivas-Plata)

1. On or about September 15, 2022, at approximately 9:01 p.m., and for a long time prior thereto, I-91 N/B was and is a public highway in the Town of Windsor, County of Hartford and State of Connecticut.

2. At said date and time, the plaintiff, CHRISTIAN RIVAS-PLATA, was the owner/operator of a 2013 Ford traveling north in the right lane of four on the abovementioned I-91.

3. At said time and date, the defendant, EDVALDO LOPES BAPTISTA, was the operator of a 2020 Kenworth traveling north in the right lane on the abovementioned I-91, with the

knowledge, consent and permission and acting as agent, servant and/or employee of the defendant, vehicle owner, SAHARA EXPRESS, INC.

4. At said time and date and in the manner heretobefore described, the plaintiff, CHRISTIAN RIVAS-PLATA, was driving his vehicle on I-91 in the right lane, when suddenly, and without warning, he struck the rear of the defendant's vehicle, as it was stopped, blocking the right lane with no lights, flasher, flairs or cones to warn approaching vehicles in the dark of night of his vehicle being stopped in a lane on the highway.

5. Said accident and resulting injuries and losses sustained by the plaintiff, CHRISTIAN RIVAS-PLATA, were directly and proximately caused by the carelessness and negligence of the defendant, EDVALDO LOPES BAPTISTA, in one or more of the following ways:

- a) in that he failed to keep a proper and reasonable lookout;
- b) in that he failed to keep said vehicle under proper and reasonable control;
- c) in that he failed to exercise reasonable care under all the circumstances then and there existing;
- d) in that he stopped/parked his vehicle on a highway, therefore, in violation of CT General Statutes 14-251;
- e) in that he failed to have his lights and flashers on in the dark of night, therefore, in violation of CT General Statutes 14-96a;
- f) in that he failed to comply with DOT sign, therefore, in violation of CT General Statutes 14-298.

6. As a result of said accident, the plaintiff, CHRISTIAN RIVAS-PLATA, sustained the following personal injuries, some or all of which may be permanent in nature:

- a) Back pain;
- b) Neck pain;
- c) Head laceration with staples;
- d) Right hand pain;
- e) Stitches, right hand;
- f) Facial bruises;
- g) Bruises on legs;
- h) Haedaches.

7. As a further consequence of his injuries, the plaintiff, CHRISTIAN RIVAS-PLATA, has incurred expenses for x-rays, medical care and treatment, and physical therapy; and may be obliged to incur medical expenses in the future.

8. The plaintiff, CHRISTIAN RIVAS-PLATA, suffered loss of function, has been caused to experience pain, mental anguish and the suffering of discomfort, which may be permanent.

9. Further, the plaintiff, CHRISTIAN RIVAS-PLATA, has been disabled from the enjoyment of recreational and social activities with his usual characteristic vigor.

SECOND COUNT: (As to the defendant Edvaldo Lopes Baptista – Reckless Count)

1-9. Paragraphs One (1) through Nine (9) of the First Count are hereby incorporated by reference and made Paragraphs One (1) through Nine (9) of this the Second Count.

10. The defendant, EDVALDO LOPES BAPTISTA's operation of the motor vehicle he was driving was reckless in that he knew, or should have known, that he was reckless by parking his truck in a highway lane of travel, endangering himself and traffic around him and should have moved his vehicle to the shoulder and/or displayed lights, flasher, flairs and/or cones to

help avoid a collision, instead of recklessly, illegally parking in a highway lane of travel, in violation of CT General Statute 14-222.

11. The defendant, EDVALDO LOPES BAPTISTA's violation of CT General Statute 14-222 was a substantial factor in causing the plaintiffs injuries and losses as he should have moved his vehicle to the shoulder and/or displayed lights, flasher, flairs and/or cones to help avoid a collision, instead of recklessly, illegally parking in a highway lane of travel.

12. As a result, the defendant, EDVALDO LOPES BAPTISTA, is directly liable for the imposition of statutory double or treble damages in accordance with the provisions of CT General Statute 14-295.

WHEREFORE, the plaintiff, CHRISTIAN RIVAS-PLATA, claims damages within the jurisdiction of the court.

THE PLAINTIFF,
CHRISTIAN RIVAS-PLATA

BY Richard C. Pompano, Esq.
RICHARD C. POMPARNO, ESQ.
47 LAWRENCE STREET
NEW HAVEN, CT 06511
NO#: (203) 624-5928
JURIS#: ct30293
HIS ATTORNEY

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WHEREFORE, THE PLAINTIFF CLAIMS:

AS TO THE FIRST COUNT

The amount, legal interest or property in demand is in excess of \$15,000.00, exclusive of interest and costs and arose within this court's jurisdiction.

AS TO THE SECOND COUNT:

Double or Treble damages pursuant to CT General Statute 14-295 and such other relief that the Court deems just and equitable.

Dated at New Haven, Connecticut, this 16th day of June, 2023.

THE PLAINTIFF,
CHRISTIAN RIVAS-PLATA

BY Richard C. Pompano, Esq.
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NEW HAVEN, CT 06511
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